

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 814

BY RUBEL

AN ACT

RELATING TO REGISTRATION OF ELECTORS; PROVIDING A SHORT TITLE; AMENDING SECTION 34-404, IDAHO CODE, TO PROVIDE FOR REGISTRATION OF ELIGIBLE ELECTORS AT DRIVER'S LICENSING OFFICES AND TO PROVIDE THAT THE DIVISION OF MOTOR VEHICLES SHALL FORWARD REGISTRATION APPLICATIONS TO THE OFFICE OF THE COUNTY CLERK; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. SHORT TITLE. This act shall be known and may be cited as the "Motor Voter Act."

SECTION 2. That Section 34-404, Idaho Code, be, and the same is hereby amended to read as follows:

34-404. REGISTRATION OF ELECTORS -- POLITICAL PARTY AFFILIATION -- UNAFFILIATED DESIGNATION. (1) All electors must register before being able to vote at any primary, general, special, school or any other election governed by the provisions of title 34, Idaho Code. Registration of a qualified person occurs when a legible, accurate and complete registration application and proof of identity and residence are received in the office of the county clerk or at the polls pursuant to section 34-408(3), 34-408A, or 34-1012, Idaho Code.

(2) The Idaho transportation department, through the division of motor vehicles and its driver's licensing offices, shall register to vote each eligible elector who applies for the issuance, renewal, or correction of any type of driver's license pursuant to chapter 3, title 49, Idaho Code, or for an identification card pursuant to sections 49-2442 and 49-2443, Idaho Code, by completing a registration application provided for in subsection (1) of this section for the eligible elector. Each driver's licensing office shall forward completed registration applications to the office of the county clerk on a weekly basis and on the business day prior to the closing of registration. Registration applications remitted during closure of registration shall be held pursuant to section 34-408, Idaho Code. The division of motor vehicles shall provide for an elector to opt out of registration provided for in this subsection.

~~(2)~~ (3) Each elector may select on the registration application an affiliation with a political party qualified to participate in elections pursuant to section 34-501, Idaho Code, or may select to be designated as unaffiliated. The county clerk shall record the party affiliation or unaffiliated designation so selected as part of the elector's registration record. If an elector shall fail or refuse to make such a selection, the county clerk shall enter on the registration records that such elector is unaffiliated.

1 ~~(3)~~ (4) In order to provide an elector with the appropriate primary
2 election ballot, pursuant to section 34-904A, Idaho Code, the poll book for
3 primary elections shall include the party affiliation or designation as
4 unaffiliated for each elector so registered. An unaffiliated elector shall
5 declare to the poll worker which primary election ballot the elector chooses
6 to vote in, pursuant to section 34-904A, Idaho Code, and the poll worker or
7 other authorized election personnel shall record such declaration in the
8 poll book. The poll book shall contain checkoff boxes to allow the poll
9 worker or other authorized election personnel to record such unaffiliated
10 elector's selection.

11 SECTION 3. An emergency existing therefor, which emergency is hereby
12 declared to exist, this act shall be in full force and effect on and after
13 July 1, 2026.